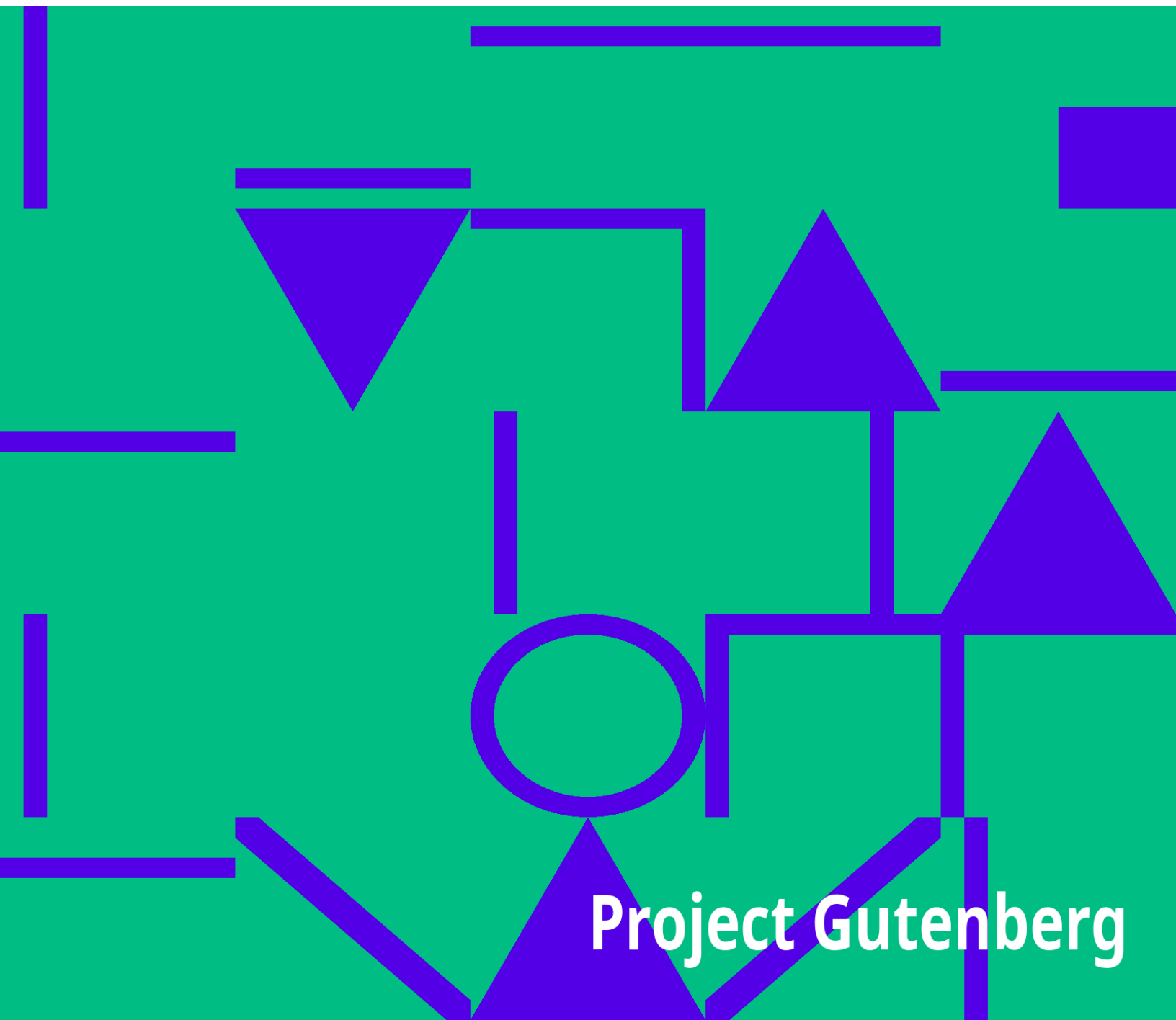


Tree, Spare that Woodman

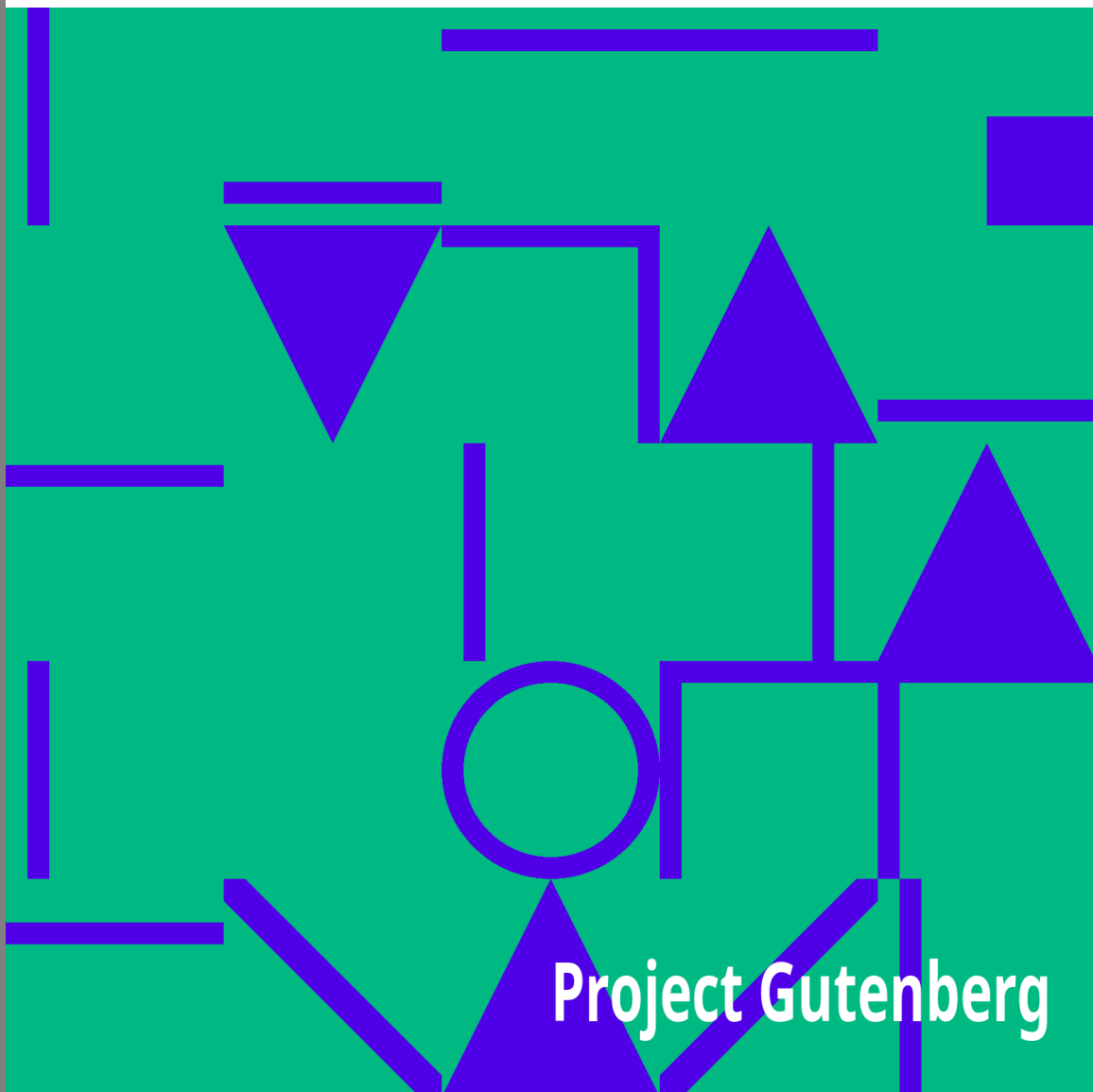
Dave Dryfoos



Project Gutenberg

Tree, Spare that Woodman

Dave Dryfoos



Project Gutenberg

The Project Gutenberg eBook of Tree, Spare that Woodman

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Tree, Spare that Woodman

Author: Dave Dryfoos

Release date: August 24, 2009 [eBook #29794]

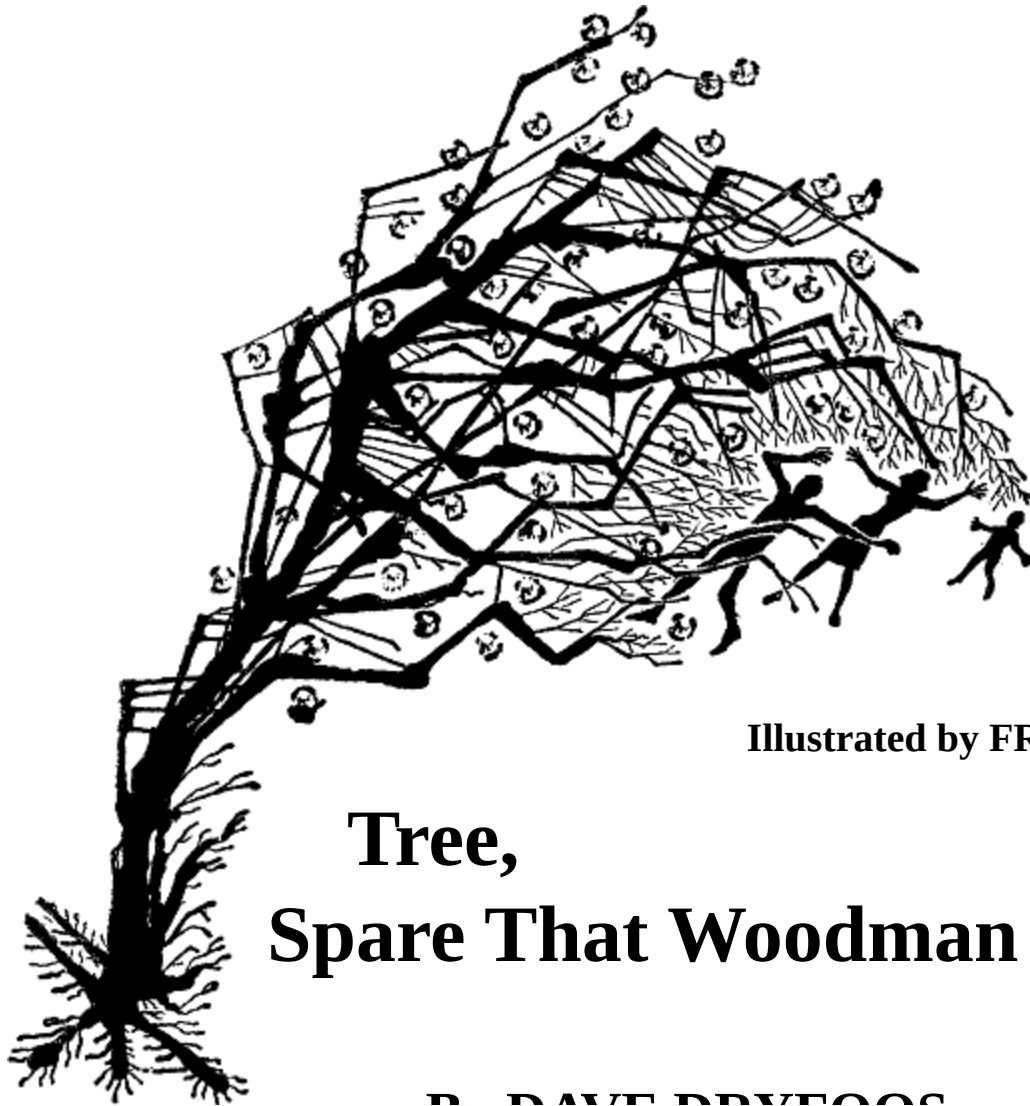
Most recently updated: January 5, 2021

Language: English

Other information and formats: www.gutenberg.org/ebooks/29794

Credits: Produced by Greg Weeks, Stephen Blundell and the Online
Distributed Proofreading Team at <https://www.pgdp.net>

*** START OF THE PROJECT GUTENBERG EBOOK TREE, SPARE
THAT WOODMAN ***



Illustrated by FRIES

Tree, Spare That Woodman

BY DAVID DRYFOOS

*The single thing to fear was fear
—ghastly, walking fear!*

STIFF with shock, Naomi Heckscher stood just inside the door to Cappy's one-room cabin, where she'd happened to be when her husband discovered the old man's body.

Her nearest neighbor—old Cappy—dead. After all his wire-pulling to get into the First Group, and his slaving to make a farm on this alien planet, dead in bed!

Naomi's mind circled frantically, contrasting her happy anticipations with this shocking actuality. She'd come to call on a friend, she reminded herself, a beloved friend—round, white-haired, rosy-cheeked; lonely because he'd recently become a widower. To her little boy, Cappy was a combination Grandpa and Santa Claus; to herself, a sort of newly met Old Beau.

Her mouth had been set for a sip of his home brew, her eyes had pictured the delight he'd take in and give to her little boy.

She'd walked over with son and husband, expecting nothing more shocking than an ostentatiously stolen kiss. She'd found a corpse. And to have let Cappy die alone, in this strange world ...

She and Ted could at least have been with him, if they'd known.

But they'd been laughing and singing in their own cabin only a mile away, celebrating Richard's fifth birthday. She'd been annoyed when Cappy failed to show up with the present he'd promised Richard. Annoyed—while the old man pulled a blanket over his head, turned his round face to the wall, and died.

Watching compassionately, Naomi was suddenly struck by the matter-of-fact way Ted examined the body. Ted wasn't surprised.

"Why did you tell Richard to stay outside, just now?" she demanded. "How did you know what we'd find here? And why didn't you tell me, so I could keep Richard at home?"

She saw Ted start, scalded by the splash of her self-directed anger, saw him try to convert his wince into a shrug.

"You insisted on coming," he reminded her gently. "I couldn't have kept you home without—without saying too much, worrying you—with the Earth-ship still a year away. Besides, I didn't know for sure, till we saw the tree-things around the cabin."

The tree-things. The trees-that-were-not. Gnarled blue trunks, half-hidden by yellow leaf-needles stretching twenty feet into the sky. Something like the hoary mountain hemlocks she and Ted had been forever photographing on their Sierra honeymoon, seven life-long years ago.

Three of those tree-things had swayed over Cappy's spring for a far longer time than Man had occupied this dreadful planet. Until just now ...

The three of them had topped the rise that hid Cappy's farm from their own. Richard was running ahead like a happily inquisitive puppy. Suddenly he'd stopped, pointing with a finger she distinctly recalled as needing thorough soapy scrubbing.

"Look, Mommie!" he'd said. "Cappy's trees have moved. They're around the cabin, now."

He'd been interested, not surprised. In the past year, Mazda had become Richard's home; only Earth could surprise him.

But, Ted, come to think of it, had seemed withdrawn, his face a careful blank. And she?

"Very pretty," she'd said, and stuffed the tag-end of fear back into the jammed, untidy mental pigeon-hole she used for all unpleasant thoughts. "Don't run too far ahead, dear."

But now she had to know what Ted knew.

"Tell me!" she said.

"These tree-things—"

"There've been *other* deaths! How many?"

"Sixteen. But I didn't want to tell you. Orders were to leave women and children home when we had that last Meeting, remember."

"What did they say at the Meeting? Out with it, Ted!"

"That—that the tree-things think!"

"But that's ridiculous!"

"Well, unfortunately, no. Look, I'm not trying to tell you that terrestrial trees think, too, nor even that they have a nervous system. They don't. But—well, on Earth, if you've ever touched a lighted match to the leaf of a sensitive plant like the mimosa, say—and I have—you've been struck by the speed

with which *other* leaves close up and droop. I mean, sure, we know that the leaves droop because certain cells exude water and nearby leaves feel the heat of the match. But the others don't, yet they droop, too. Nobody knows how it works ..."

"But *that's* just defensive!"

"Sure. But *that's* just on Earth!"

"All right, dear. I won't argue any more. But I still don't understand. Go on about the Meeting."

"Well, they said these tree-things both create and respond to the patterned electrical impulses of the mind. It's something like the way a doctor creates fantasies by applying a mild electric current to the right places on a patient's brain. In the year we've been here, the trees—or some of them—have learned to read from and transmit to our minds. The range, they say, is around fifty feet. But you have to be receptive—"

"Receptive?"

"Fearful. That's the condition. So I didn't want to tell you because you *must not* let yourself become afraid, Naomi. We're clearing trees from the land, in certain areas. And it's their planet, after all. Fear is their weapon and fear can kill!"

"You still—all you men—should have let us women know! What do you think we are? Besides, I don't really believe you. How can fear kill?"

"Haven't you ever heard of a savage who gets in bad with his witch-doctor and is killed by magic? The savage is convinced, having seen or heard of other cases, that he *can* be killed. The witch-doctor sees to it he's told he *will* be killed. And sometimes the savage actually dies—"

"From poison, I've always thought."

"The poison of fear. The physical changes that accompany fear, magnified beyond belief by belief itself."

"But how in the world could all this have affected Cappy? He wasn't a savage. And he was elderly, Ted. A bad heart, maybe. A stroke. Anything."

"He passed his pre-flight physical only a year ago. And—well, he lived all alone. He was careful not to let you see it, but I know he worried about these three trees on his place. And I know he got back from the Meeting in a worried state of mind. Then, obviously, the trees moved—grouped themselves around his cabin within easy range. But don't be afraid of them, Naomi. So long as you're not, they can't hurt you. They're not bothering us now."

"No. But where's Richard?"

Naomi's eyes swept past Ted, encompassing the cabin. No Richard! He'd been left outside ...

Glass tinkled and crashed as she flung back the cabin door. "Richard! Richard!"

Her child was not in sight. Nor within earshot, it seemed.

"Richard Heckscher! Where are you?" Sanity returned with the conventional primness. And it brought her answer.

"Here I am, Mommie! Look-at!"

He was in a tree! He was fifteen feet off the ground, high in the branches of a tree-thing, swaying—

For an instant, dread flowed through Naomi as if in her bloodstream and something was cutting off her breath. Then, as the hands over mouth and throat withdrew, she saw they were Ted's. She let him drag her into the cabin and close the broken door.

"Better not scare Richard," he said quietly, shoving her gently into a chair. "He might fall."

Dumbly she caught her breath, waiting for the bawling out she'd earned.

But Ted said, "Richard keeps us safe. So long as we fear for him, and not ourselves—"

That was easy to do. Outside, she heard a piping call: "Look at me now, Mommie!"

"Showing off!" she gasped. In a flashing vision, Richard was half boy, half vulture, flapping to the ground with a broken wing.

"Here," said Ted, picking up a notebook that had been on the table. "Here's Cappy's present. A homemade picture book. Bait."

"Let *me* use it!" she said. "Richard may have seen I was scared just now."

Outside again, under the tree, she called, "Here's Cappy's present, Richard. He's gone away and left it for you."

Would he notice how her voice had gone up half an octave, become flat and shrill?

"I'm coming down," Richard said. "Let me down, tree."

He seemed to be struggling. The branches were cage-like. He was caught!

Naomi's struggle was with her voice. "How did you *ever* get up there?" she called.

"The tree let me up, Mommie," Richard explained solemnly, "but he won't let me down!" He whimpered a little.

He must *not* become frightened! "You tell that tree you've got to come right down this instant!" she ordered.

She leaned against the cabin for support. Ted came out and slipped his arm around her.

"Break off a few leaves, Richard," he suggested. "That'll show your tree who's boss!"

Standing close against her husband, Naomi tried to stop shaking. But she lacked firm support, for Ted shook, too.

His advice to Richard was sound, though. What had been a trap became, through grudging movement of the branches, a ladder. Richard climbed down, scolding at the tree like an angry squirrel.

NAOMI thought she'd succeeded in shutting her mind. But when her little boy slid down the final bit of trunk and came for his present, Naomi broke. Like a startled animal, she thrust the book into his hands, picked him up and ran. Her mind was a jelly, red and quaking.

She stopped momentarily after running fifty yards. "Burn the trees!" she screamed over her shoulder. "Burn the cabin! Burn it all!" She ran on, Ted's answering shouts beyond her comprehension.

Fatigue halted her. At the top of the rise between Cappy's farm and their own, pain and dizziness began flowing over her in waves. She set Richard down on the mauve soil and collapsed beside him.

When she sat up, Richard squatted just out of reach, watching curiously. She made an effort at casualness: "Let's see what Daddy's doing back there."

"He's doing just what you said to, Mommie!" Richard answered indignantly.

Her men were standing together, Naomi realized. She laughed. After a moment, Richard joined her. Then he looked for his book, found it a few paces away, and brought it to her.

"Read to me, Mommie."

"At home," she said.

Activity at Cappy's interested her now. Wisps of smoke were licking around the trees. A tongue of flame lapped at one while she watched. Branches writhed. The trees were too slow-moving to escape ...

But where was Ted? What had she exposed him to, with her hysterical orders? She held her breath till he moved within sight, standing quietly by a pile of salvaged tools. Behind him the cabin began to smoke.

Ted wasn't afraid, then. He understood what he faced. And Richard wasn't afraid, either, because he didn't understand.

But she? Surreptitiously Naomi pinched her hip till it felt black and blue. That was for being such a fool. She must *not* be afraid!

"Daddy seems to be staying there," she said. "Let's wait for him at home, Richard."

"Are you going to make Daddy burn *our* tree?"

She jumped as if stung. Then, consciously womanlike, she sought relief in talk.

"What do *you* think we should do, dear?"

"Oh, I *like* the tree, Mommie. It's cool under there. And the tree plays with me."

"How, Richard?"

"If I'm pilot, he's navigator. Or ship, maybe. But he's so dumb, Mommie! I always have to tell him everything. Doesn't know what a fairy is, or Goldilocks, or anything!"

He clutched his book affectionately, rubbing his face on it. "Hurry up, Mommie. It'll be bedtime before you ever read to me!"

She touched his head briefly. "You can look at the book while I fix your supper."

BUT to explain Cappy's pictures—crudely crayoned cartoons, really—she had to fill in the story they illustrated. She told it while Richard ate: how the intrepid Spaceman gallantly used his ray gun against the villainous Martians to aid the green-haired Princess. Richard spooned up the thrills with his mush, gazing fascinated at Cappy's colorful and fantastic pictures, propped before him on the table. Had Ted been home, the scene might almost have been blissful.

It might have been ... if their own tree hadn't reminded her of Cappy's. Still, she'd almost managed to stuff her fear back into that mental pigeon-hole before their own tree. It was unbelievable, but she'd been glancing out the window every few minutes, so she saw it start. Their own tree began to walk.

Down the hill it came—right there!—framed in the window behind Richard's head, moving slowly but inexorably on a root system that writhed along the surface. Like some ancient sculpture of Serpents Supporting the Tree of Life. Except that it brought death ...

"Are you sick, Mommie?"

No, not sick. Just something the matter with her throat, preventing a quick answer, leaving no way to keep Richard from turning to look out the window.

"I think our tree is coming to play with me, Mommie."

No, no! Not Richard!

"Remember how you used to say that about Cappy? When he was really coming to see your daddy?"

"But Daddy isn't home!"

"He'll get here, dear. Now eat your supper."

A lot to ask of an excited little boy. And the tree *was* his friend, it seemed. Cappy's tree had even followed the child's orders. Richard might intercede —

No! Expose him to such danger? How could she think of it?

"Had enough to eat, dear? Wash your hands and face at the pump, and you can stay out and play till Daddy gets home. I—I want—I may have to see your friend, the tree, by myself ..."

"But you haven't finished my story!"

"I will when Daddy gets home. And if I'm not here, you tell Daddy to do it."

"Where are you going, Mommie?"

"I might see Cappy, dear. Now go and wash, please!"

"Sure, Mommie. Don't cry."

Accept his kiss, even if it *is* from a mouth rimmed with supper. And don't rub it off till he's gone out, you damned fool. You frightened fool. You shaking, sweating, terror-stricken fool.

Who's he going to kiss when you're not here?

The tree has stopped. Our little tree is having its supper. How nice. Sucking sustenance direct from soil with aid of sun and air in true plant fashion—but exhausting our mineral resources.

(How wise of Ted to make you go to those lectures! You wouldn't want to die in ignorance, would you?)

The lecture—come on, let's go back to the lecture! Let's free our soil from every tree or we'll not hold the joint in fee. No, not joint. A vulgarism, teacher would say. Methinks the times are out of joint. Aroint thee, tree!

Now a pinch. Pinch yourself hard in the same old place so it'll hurt real bad. Then straighten your face and go stick your head out the window. Your son is talking—your son, your sun.

Can your son be eclipsed by a tree? A matter of special spatial relationships, and the space is shrinking, friend. The tree is only a few hundred feet from the house. It has finished its little supper and is now running around. Like Richard. *With* Richard! Congenial, what?

Smile, stupid. Your son speaks. Answer him.

"What, dear?"

"I see Daddy! He just came over the hill. He's running! Can I go meet him, Mommie?"

"No, dear. It's too far."

Too far. Far too far.

"Did you say something to me, Richard?"

"No. I was talking to the tree. I'm the Spaceman and he's the Martian. But he doesn't want to be the Martian!"

Richard plays. Let us play. Let us play.

You're close enough to get into the game, surely. A hundred and fifty feet, maybe. Effective range, fifty feet. Rate of motion? Projected time-interval? Depends on which system you observe it from. Richard has a system.

"He doesn't want to play, Mommie. He wants to see you!"

"You tell that tree your Mommie *never* sees strangers when Daddy isn't home!"

"I'll *make* him wait!"

Stoutly your pot-bellied little protector prevents his protective mother from going to pot.

"If he won't play, I'll use my ray gun on him!"

Obviously, the tree won't play. Watch your son lift empty hands, arm himself with a weapon yet to be invented, and open fire on the advancing foe.

"Aa-aa-aa!"

So *that's* how a ray gun sounds!

"You're dead, tree! You're dead! Now you *can't* play with me any more. You're dead!"

SEEING it happen, then, watching the tree accept the little boy's fantasy as fact, Naomi wondered why she'd never thought of that herself.

So the tree was a treacherous medicine-man, was it? A true-believing witch-doctor? And who could be more susceptible to the poisoning of fear than a witch-doctor who has made fear work—and believes it's being used against him?

It was all over. She and the tree bit the dust together. But the tree was dead, and Naomi merely fainting, and Ted would soon be home ...

—DAVE DRYFOOS



Transcriber's Note:

This etext was produced from *Galaxy Science*

Fiction October 1952. Extensive research did not uncover any evidence that the U.S. copyright on this publication was renewed. Minor spelling and typographical errors have been corrected without note.

*** END OF THE PROJECT GUTENBERG EBOOK TREE, SPARE
THAT WOODMAN ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

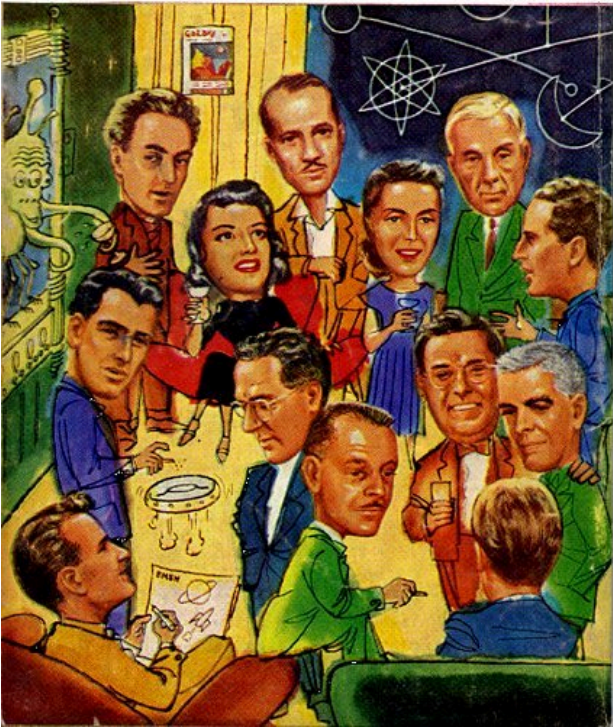
Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.

Galaxy

SCIENCE FICTION

OCTOBER 1952
35¢
ANC



[back](#)